

Vipin Kalanamak Factory Pvt. Ltd. v. State of U.P. (demand notice / cl. 7.10 CGRF)

High Court of Judicature at Allahabad · Division Bench · 30 November 2018 · WRIT - C No. 39243 of 2018 · **Writ disposed of; relegated to CGRF under clause 7.10**

HEADNOTE

A writ seeking to quash an electricity demand notice and a Tehsildar recovery citation was disposed of on the alternative-remedy objection. Clause 7.10 of the U.P. Electricity Supply Code, 2005 gives the consumer a remedy before the Consumer Redressal Forum, including power to grant interim relief. Any complaint filed within 15 days was to be decided by a reasoned order within three months.

FACTUAL SUMMARY

The petitioner company challenged before the Allahabad High Court an 8 August 2018 notice of the Executive Engineer, Electricity Distribution Division, Modinagar, and a 31 October 2018 Tehsildar citation to appear at Modinagar, District Ghaziabad, seeking certiorari to quash both and a mandamus restraining recovery and coercive measures. Counsel for the distribution licensee submitted that the petitioner had a statutory remedy under clause 7.10 of the U.P. Electricity Supply Code, 2005 before the Consumer Redressal Forum, including power to grant an interim order.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

cgrf-route-for-billing-recovery

HOLDING

A consumer challenging a distribution licensee's demand notice and a Tehsildar recovery citation has an adequate remedy under clause 7.10 of the U.P. Electricity Supply Code, 2005 before the Consumer Redressal Forum, which may also grant interim orders. The writ was disposed of with a direction that if the petitioner approaches the Forum within 15 days, the Forum shall consider and decide the matter by a reasoned and speaking order within three months of production of a certified copy of this order.

PRINCIPLE TAGS

clause-7.10-forum-ombudsman-route-for-billing-grievances

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NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE 8 AUGUST 2018 DEMAND NOTICE AND 31 OCTOBER 2018 TEHSILDAR RECOVERY CITATION

The Court did not examine the demand or the recovery proceedings; it relegated the petitioner to the Consumer Redressal Forum.